TITLE 37—PATENTS, TRADEMARKS, AND COPYRIGHTS

Chapter I—Patent Office, Department of Commerce

PART 5—TRADE-MARKS

PART 100—RULES OF PRACTICE IN TRADE-MARK CASES

CHANGE OF EFFECTIVE DATE OF AMENDMENTS

The time for taking effect of the establishment of § 100.44 *Advertising*, of Part 100 and the deletion of § 5.11 of Part 5 (12 F. R. 3956, June 19, 1947) is further changed from July 1, 1948 (12 F. R. 7140, November 4, 1947) to January 1, 1949.

(Secs. 1, 41, 60 Stat. 427, 440; 15 U. S. C. 1051, 1123)

THOMAS F. MURPHY,
Acting Commissioner of Patents.

Approved:

CHARLES SAWYER,
Secretary of Commerce.

[F. R. Doc. 48-5908; Filed, June 30, 1948; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

[Order 314]

PART 50—ORGANIZATION AND PROCEDURE

DELEGATIONS TO CHIEFS OF DIVISIONS AND CHIEFS OF SUBDIVISIONS OF DIVISIONS

JUNE 24, 1948.

1. The first paragraph of § 50.352 (Order No. 307, May 6, 1948) is designated as paragraph (a) and new subparagraphs are added, as follows:

§ 50.352 *Functions of the Chief, Division of Adjudication and the Chiefs of Subdivisions of that Division, with respect to various statutes.*[1] (a) The Chief of the Division of Adjudication and the Chiefs of subdivisions of that Division may act for the Director in the following classes of matters, subject to the conditions and restrictions set forth in § 50.351:

* * * * *

(7) Approval of construction in advance of the issuance of a permit or easement in right-of-way cases, in accordance with 43 CFR, 244.10, 245.8, as amended.

(8) Applications to use public lands under right-of-way permits for tramroads under the act of January 21, 1895 (28 Stat. 635; 43 U. S. C. 956), and the issuance, assignment, modification or cancellation of such permits.

(9) Applications to use public lands under permits for rights-of-way under the act of February 15, 1901 (31 Stat. 790; 43 U. S. C. 959, 16 U. S. C. 79), and the issuance, assignment, modification or cancellation of such permits: *Provided, however,* That cancellation shall be only in the circumstances specifically prescribed in regulations of the Secretary. This authority shall not relate to applications or permits involving lands within national parks, Indian reservations, or any reservations of the United States for the use of or administered by the National Park Service, the Fish and Wildlife Service, or any agency outside the Department of the Interior.

(10) Applications to use public lands under right-of-way easements under the act of March 4, 1911 (36 Stat. 1235, 1253-54; 43 U. S. C. 961), and the issuance and assignment of such easements. This authority shall not relate to applications or permits involving lands within national parks, Indian reservations, any reservations of the United States for the use of or administered by the National Park Service, the Fish and Wildlife Service, or any agency outside the Department of the Interior, or to the revocation of any easements granted under the act of March 4, 1911, or to the modification of such easements without the consent of the persons to whom they have been issued.

(46) Applications for the lease or sale of lands in the Matanuska Valley, Alaska, under the act of October 17, 1940 (54 Stat. 1191, 48 U. S. C. 353 note), including the approval of such applications, and the issuance, assignment, modification or cancellation of such leases. (43 CFR, Part 4)

2. The first paragraph of § 50.353 (Order No. 307, May 6, 1948) is designated as paragraph (a), subparagraph (1) thereof is amended, and new subparagraphs are added, as follows:

§ 50.353 *Functions of the Chief of the Division of Adjudication and the Chiefs of subdivisions of that Division; general.* (a) The Chief of the Division of Adjudication and the Chiefs of subdivisions of that Division may act for the Director in the following classes of matters, subject to the conditions and restrictions set forth in § 50.351:

(1) Applications for entries under the general, reclamation, second entry and other homestead laws, and necessary actions in connection therewith, including the allowance, amendment or rejection of such applications, the assignment of reclamation homestead entries, applications for extensions of time to establish residence, and for changes in the residence requirements, reductions of areas of cultivation, the issuance and publication of proof notices, the disposition of protests and conflicting applications, and the issuance of final certificates or expiration notices.

* * * * *

(5) Closing of cases pursuant to Bureau or Departmental decisions, where proper.

(6) The initiation of Government contests by the issuance of charges as a basis therefor. (43 CFR, Part 4)

(R. S. 161; 5 U. S. C. 22; Reorg. Plan No. 3 of 1946, 11 F. R. 7875)

ROSCOE E. BELL,
Assistant Director.

[F. R. Doc. 48-5851; Filed, June 30, 1948; 8:45 a. m.]

Appendix—Public Land Orders

[Public Land Order 491]

CALIFORNIA

REVOKING IN PART EXECUTIVE ORDER NO. 6361 OF OCTOBER 25, 1933, WITHDRAWING LANDS FOR CLASSIFICATION AND PENDING DETERMINATION AS TO ADVISABILITY OF INCLUDING SUCH LANDS IN A NATIONAL MONUMENT

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (U. S. C., title 43, sec. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 6361 of October 25, 1933, withdrawing certain public lands in California for classification and pending determination as to the advisability of including such lands in a national monument, is hereby revoked so far as it affects the following-described lands:

SAN BERNARDINO MERIDIAN

T. 2 S., R. 4 E.,
Sec. 22, NW¼;
Sec. 24, N½NE¼;
Sec. 28, NW¼;
Sec. 32, SW¼.

The areas described aggregate 560 acres.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

JUNE 22, 1948.

[F. R. Doc. 48-5849; Filed, June 30, 1948; 8:45 a. m.]

TITLE 45—PUBLIC WELFARE

Chapter VI—Office of Vocational Rehabilitation, Federal Security Agency

PART 601—BUSINESS ENTERPRISES PROGRAM FOR THE BLIND

MISCELLANEOUS AMENDMENTS

Pursuant to the authority conferred by the Labor-Federal Security Appropriation Act, 1949, approved June 14, 1948, Title II, Subheading "Office of Vocational Rehabilitation" governing Federal reimbursement for one-half of necessary expenditures for acquisition of vending stands and other equipment to be controlled by the State Agency for the use of blind persons, the regulations prescribed pursuant to the Labor-Federal Security Appropriation Act, 1948, approved July 8, 1947 (12 F. R. 4644) are hereby adopted and prescribed as the regulations under the Labor-Federal Security Appropriation Act, 1949, with the following changes:

1. Section 601.2 (a) is hereby changed to read as follows: "'Act' means Title II, Subheading 'Office of Vocational Re-

[1] The numbers of the subparagraphs in this section correspond with the numbers of the related subparagraphs in 43 CFR 4.275 (a).